

Plaintiff cannot obtain relief pursuant to CCP § 663 because that section addresses setting aside a judgment, not a dismissal. Even if this were a judgment, Section 663 requires a Notice of Intention to be filed and served within 15 days after entry of dismissal. Defendant served the order dismissing the action electronically on December 19, 2025 and served notice of the entry of the order of dismissal on Plaintiff by electronic service on December 30, 2025. See Notice of Entry of Dismissal filed December 30, 2025. Plaintiff filed her Notice of Intention 57 days later on February 25, 2026. See Plaintiff's Notice of Intention to Move to Vacate Sanctions and Set Aside the Dismissal, filed February 25, 2026. Thus, even if this were the proper vehicle for Plaintiff her Notice of Intention was untimely.

In addition, Plaintiff's Notice of Intention did not "designate the grounds upon which the motion will be made and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts," as required by Section 663(a).

The court agrees that the Plaintiff's motions are the equivalent of a Motion for Reconsideration under CCP § 1008. However, Plaintiff has failed to seek reconsideration within ten days of the order of dismissal, as required by the statute. In addition, Plaintiff fails to assert "new or different facts, circumstances, or law," as required by Section 1008.

Plaintiff's Motion to Set Aside Dismissal, and Motion to Vacate Orders and Sanctions are **denied**.

3. 9:00 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
*HEARING ON MOTION IN RE: TO VACATE ORDER AND SANCTIONS
FILED BY: WANG, NA
TENTATIVE RULING:

See Line 2 above.

4. 9:00 AM CASE NUMBER: C23-00634
CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.
*HEARING ON MOTION IN RE: AS TO BRUCE GRIGGS FOR DEF GOLDEN GATE BELL AND
DIVERSIFIED RESTAURANT GROUP, LLC
FILED BY: GOLDEN GATE BELL, LLC.
TENTATIVE RULING:

Before the Court is an application by Texas attorney Bruce Griggs to be admitted to appear in this specific civil action *pro hac vice*. The application was originally filed